

did acquyte them, but the Lo. Chauncellor, the Archebishop & Secretarye Herberte did Condemne them, & fine them 20^{li}. & 30^{li}. a peece.

'And by occasyon of the sentence, the Lo. Ch. Justice delyuered good & necessary matter of learninge for seruinge & executinge of proces, whether the sheriffe or baylife mighte breake & enter a howse, or no, to serue proces. One booke saythe he maye, another saythe he maye not, so it seemethe *vexata questio* & that the bookes shoulde differ: but of late vpon resolution it is adiudged & published in Lo. Coke's reportes p. [V], fol. [91], *Seman's Case*,¹ that where the kinge is partie either in originall or iudiciall proces, he maye breake & enter a howse, & so in a *Capias vllagatum*, for there the kinge hath an intereste: but in an originall or *Latitat* where the subiecte ys onelye partie, there he Can not enter & breake the howse, for it is euerye man's Castle; but, yf the doore be shutte or lachte, he maye lifte the lache & open it & goe in, but not vnlocke or vnbolte it; but yf he doe breake open the doore, as in this case, the arreste notwthstandinge ys lawfull, but the partie shall haue an action of trespass for breakinge the doore, but th'arreste ys lawfull notwthstandinge: & so the bookes vpon this difference doe not contrarie one th'other as hathe bene conceaued, for this iudgemente & difference reconcyethe them. *quod nota*. And touchinge th'arreste by nighte, he helde it no offence by lawe, for otherwyse Fewe dettes woulde be payde; but a man can not distreine for a rente seruice by nighte, & the reason ys for that the lawe intendethe that the tenaunte woulde paye it yf it were by daye, or repleue [replevy] the distres.

'But the Lo. Chauncellor seemed to dislyke muche theise arrestes by nighte, & helde opinion there was no auctoritie to proue them, for where the bookes are that a man maye distreigne in the nighte for dammage fesante, the reason ys because otherwyse the Cattelle maye destroye the Corne or pasture before the morninge, & when they are in the ponde they are *in gremio legis*. Theise new writtes,

Lord Chief Justice on the serving of process

Seman's case

Arrest at night is lawful, but not distraint

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Lord Chancellor on arrests at night

¹ Semayne's case; *Peter Semayne v. Richard Gresham*, Mich. 2 Jac. I.